
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 110 (H.536). An act relating to toxic heavy metals in baby food products

Subjects: Labeling; health; testing; adulterated food; baby food products

This act prohibits a person from selling, distributing, or offering for sale a baby food product that contains a toxic heavy metal exceeding regulatory limits established by the U.S. Food and Drug Administration. This act defines “toxic heavy metal” as arsenic, cadmium, lead, and mercury. It further requires the testing of baby food products sold or distributed in the State for toxic heavy metals. It requires the labelling of baby food products and the provision of information about toxic heavy metals in baby food products. This act is enforced by the Office of the Attorney General under the Consumer Protection Act.

When this act becomes effective on January 1, 2027, the definition of “baby food product” will exclude infant formula. However, it amends the definition of “baby food product” to include infant formula upon the Attorney General’s written confirmation that a law has taken effect in either California or two other states with requirements substantially comparable to the requirements in this act regarding: (1) the prohibition on sale and distribution of an infant formula containing a toxic heavy metal exceeding U.S. Food and Drug Administration limits; (2) the required testing of infant formula for toxic heavy metals; and (3) the labelling of infant formula and the provision of information about toxic heavy metals in infant formula. This act includes a provision that directs the Attorney General, in consultation with the Commissioner of Health, to temporarily suspend the application of this act to infant formula if the Attorney General verifies that there is insufficient infant formula to meet the need or that there is evidence of a declining supply.

Effective Date: Multiple dates, beginning on January 1, 2027